

20STCV14309 20STCV14309

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-09-03

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Case Number: 20STCV14309 Hearing Date: September 3, 2026 Dept: 400

Motion-

Other Award of Costs

The Court tenders the

following tentative decision in the matter Mehran Mottahedeh v. Howard

Sommers Towing, Inc., Los Angeles County Superior Court case number 20STCV14309,

set for hearing on September 3, 2026. Howard Sommers Towing, Inc. (Defendant)

moves for an award of costs in the amount of \$49,481.16. Mehran Mottahedeh (Plaintiff)

opposes the motion to the extent that it seeks an award of costs greater than \$25,000.

Defendant's motion is continued.

The parties dispute

whether they reached an agreement limiting the amount of costs owed by

Plaintiff to \$25,000. A verdict was entered in Defendant's favor on March 12,

2024. (Dorenfeld Decl. ¶ 3.) Plaintiff filed a notice of appeal on June 10,

2024. (Id. ¶ 4.) On July 9, 2025, counsel conferred regarding the

possibility of Plaintiff abandoning his appeal in exchange for a reduction in

the amount of costs sought by Defendant. (Id. ¶ 8.) Plaintiff presents

evidence of communications showing a confirmation by Defendant's counsel that

the costs request would be lowered to \$25,000 if the appeal was abandoned. (Id.

¶¶ 9–13.) Plaintiff then abandoned the appeal. (Id. ¶ 14.) Defendant

argues that these discussions constituted mere preliminary negotiations.

If an agreement was

indeed reached between the parties, limiting the amount of recoverable costs to

\$25,000 would be proper. However, the evidence presented is lacking. Plaintiff

has not provided any email demonstrating their initial offer or their final

acceptance. Nor has Defendant offered any evidence of the purported agreement

having been rejected. Thus, the Court continues the present motion and requests that the parties submit further evidence of their communications so it may determine whether a contract was formed.

Conclusion:

Defendant's motion is continued. The parties are ordered to submit further evidence of their negotiations within 30 days.